

## Delhi Laws Act, 1915

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Union of India - Act

Delhi Laws Act, 1915

UNION OF INDIA

India

Delhi Laws Act, 1915

Act 7 of 1915

Published on 22 March 1915

Commenced on 22 March 1915

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Delhi Laws Act, 1915

Act

No. 7 of 1915

1498.

Object and Reason.- Owing to the issue of the proclamation cited in the preamble, adding certain territory, previously included in the United Provinces of Agra and Oudh. to the Province of Delhi, it has become necessary to take steps to declare the law in force in the territory now added to that province.

Save in respect of a few enactments which are referred to below, the law in force in the Province of Delhi is declared to be in force in the territory now added to that provinces.

The enactments in force in the province of Delhi which are declared not to be in force in this territory are set forth in Schedule II.

In place of them the enactments specified in schedule III which are already in force in this area, are continued in force there. It is clearly undesirable to make any change in these laws, which mainly related to land, if such a course can be avoided.

[22nd March, 1915.]

An Act to declare the law in force in certain territory added to the Province of Delhi.

WHEREAS by Proclamation published in Notification No. 984-C, dated the 22nd day of February, 1915, the Governor-General in Council, with the sanction and approbation of the Secretary of State for India has been pleased to take under his immediate authority and management the territory mentioned in Schedule I, which was formerly in eluded within the United Provinces of Agra and Oudh, and to include the said territory in the Province of Delhi with effect from the 1st April, 1915;

AND WHEREAS it is expedient to declare the law in force in the said territory;

It is hereby enacted as follows:-

1.

Short title and Commencement.-

(1)

This Act may be called the Delhi Laws Act, 1915;

(2)

It shall come into force on the first day of April, 1915.

2.

Application to added area of law in force in existing state of Delhi.-

All enactments (except the enactments specified in Schedule II) for the time being in force in the territory specified in Schedule A to the Delhi Laws Act, 1912, and all notifications, orders, schemes, rules, forms and by-laws issued, made or prescribed under such enactments shall be deemed to be in force in the territory specified in Schedule I in the same manner and subject to the same modifications as they are for the time being in the territory specified in the said Schedule to the said Act.

3.

Continuance in added area of certain laws now in force in the Uttar Pradesh.-

The enactments specified in Schedule III, and all notifications, orders, schemes, rules, forms and by-laws issued, made or prescribed under those enactments shall continue to be in force in the territory: specified in Schedule I:

Provided that in the enactments so continued and in all notifications, orders, schemes, rules, forms and by-laws issued, made or prescribed thereunder, reference to a State Government, the [State Government]

[Substituted by the A.O. 1950 for "Provisional Government"]

of the United Provinces of Agra and Oudh, or the Board of Revenue for the [Uttar Pradesh]

[Substituted for the word "United Province" by A.L.O., 1950]

shall be read as referring to the [State Government]

[Substituted by the A.O. 1950 for "Provisional Government"]

of Delhi; references to a High Court or the High Court of Judicature of the North-Western Provinces as referring to the [High Court of Judicature at Lahore]

[ Substituted by Act 18 of 1919, s.2 and Sch. I, for "Chief Court of the Punjab"]

, and references to the Official Gazette for the Uttar Pradesh as referring to the [Official Gazette]

[Substituted for the word "Gazette of India" by A.O., 1950]

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4.

Provision for facilitating application of certain enactments.-

For the purpose of facilitating the application to the territory mentioned in Schedule I of the enactments referred to in section 3, the powers conferred by sections 4 and 5 of the Delhi Laws Act, 1912 (13 of 1912), shall be exercisable in respect thereof.

5.

Exclusion of certain enactments from the added area.-

Save as provided in sections 2 and 3 no enactment which is in force in the United Provinces of Agra and Oudh or any part thereof shall continue to be in force in the territory specified in Schedule I.

6.

Pending proceedings.-

Nothing in this Act shall affect any proceeding which at the commencement thereof is pending in respect of any of the territory mentioned in Schedule I or of anything arising in such territory and every such proceeding shall be confined as if this Act had not been passed:

Provided that the [State Government]

[Substituted by the A.O. 1950 for "Provisional Government"]

may, by notification in the [Official Gazette,]

[Substituted for the word "Gazette of India" by A.O., 1950]

direct that any proceeding, criminal, civil or revenue, other than a proceeding pending before the High Court of Judicature for the North-Western Provinces, shall be transferred to, and disposed of by, the corresponding authority of the Delhi State.

7.

Amendment of section 7 of Act 13 of 1912.-

Rep. by the Repealing Act, 1938 (1 of 1938), s.2 and Sch.

8.

Constructions.-

This Act shall be construed with, and deemed to be part of, the Delhi Laws Act, 1912 (13 of 1912).

I

(See Section 2)

TERRITORY ADDED TO THE PROVINCE OF DELHI

Revenue estates of-

1. Subehpur.

2. Jagatpur.

3. Baqiabad.

4. Beharipur.

5. Saadatpur Mahal Gujran.

6. Saadatpur Musalmanan.

7. Saadatpur Amad Delhi.

8. Wazirabad.

9.

Khajuari Paramad.

10.

Khajuri Khas.

11.

Garhi Mendu.

12.

Timarpur.

13.

Chandrawal.

14.

Usmanpur.

15.

Ghonda patti Gujran Khadar.

16.

Ghonda patti Chanhan Khadar.

17.

Andhavli.

18.

Kaithwara.

19.

Silampur Amad Delhi.

20.

Khondli Khadar.

21.

Jatwara Khurd.

22.

Mubarakpur Reti.

23.

Shakarpur Khadar.

24.

Nagla Manchi.

25.

Shamspur.

26.

Gharaunda Nimba Khadar

27.

Nagli Razapur.

28.

Chilla Sarauda Khadar

29.

Qarawalnagar urf Dharauti Kalan.

30.

Jivanpur Johripur.

31.

Mustafabad.

32.

Mirpur Turk.

33.

Ziauddinpur.

34.

Khanpur Dhani.

35.

Maujpur.

36.

Ghonda patti Gujran Bangar.

37.

Ghonda patti Chauhan Bangar.

38.

Jafrabad.

39.

Uldanpur.

40.

Babarpur.

41.

Siqdarpur.

42.

Gokalpur.

43.

Sabauli.

44.

Mandauli.

45.  
Taharpur.
46.  
Jhilmila.
47.  
Chandavli urf Shadara.
48.  
Silampur Bangar.
49.  
Silampur Khadar.
50.  
Ghondli Bangar.
51.  
Kakarduman.
52.  
Khureji Khas.
53.  
Khureji Baramad.
54.  
Shakarpur Khas Bangar.
55.  
Mandavli Fazilpur.
56.  
Hasanpur Bhuapur.
57.  
Ghazipur.
58.  
Khichripur.
59.  
Gharaunda Nimka Bangar (Patparganj).
60.  
Shakarpur Baramad.
61.  
Kotla.
62.  
Chilla Sarauda Bangar.
63.  
Dalupura.
64.  
Kondli.
65.  
Gharauli.

II

(See section 2)

ENACTMENTS IN FORCE IN THE DELHI PROVINCE WHICH WILL NOT BE FORCE IN THE TERRITORY ADDED TO THAT PROVINCE

Year

Number

Short Title

Remarks

Acts of the Governor-General of India in Council

1887

XVI

The Punjab Tenancy Act, 1887.

-

1887

XVII

The Punjab Land Revenue Act, 1887.

-

[\* \* \*

[The entry related to the Punjab Alienation of Land Act, 1900 is repealed by Act 10 of 1927, section 3 and Sch. II]

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Punjab Acts

1900

II

The Punjab Land Preservation (Chos) Act, 1900.

-

1912

V

The Colonization Government Lands (Punjab) Act, 1912.

-

1913

I

The Punjab Pre-emption Act, 1913.

-

1913

II

The Redemption of Mortgages (Punjab) Act, 1913.

-

III

(See section 3)

ENACTMENTS IN FORCE IN THE UNITED PROVINCES OF AGRA AND OUDH WHICH WILL CONTINUE TO BE IN FORCE IN THE TERRITORY ADDED TO THE DELHI PROVINCE

Year

Number

Short Title

Remarks

Acts of the Governor-General of India in Council

1882

IV

The Transfer of property Act, 1882.

-

V

The Indian Easements Act, 1882.

-

1891

VIII

An Act to extend the Indian Easements Act, 1882, to certain areas in which that Act is not in force.

-

United Provinces Act

1901

II

The Agra Tenancy Act, 1901.

-

1901

III

The United Provinces land Revenue Act, 1901.

-

1904

I

The United Provinces General Clauses Act, 1904.

In so far as it applies to the Agra Tenancy Act, 1901, and the United Provinces Land Revenue Act, 1901.

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